

Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY 2
Cotabato City

First Regular Session

BTA PARLIAMENT
BTA Parliament Bill No. 08

Bangsamoro Autonomous Region in Muslim Mindanao
Parliament
BILLS AND INDEX DIVISION
RECEIVED
Name: ADULT DUKATUN Signature: [Signature]
Date: 02/19/22 Time: 6:11 PM

Introduced by:

MP Engr. Baintan A. Ampatuan, CSEE, MNSA

Co-authored by:

MP Atty. Laisa M. Alamia, RN, CESE, MNSA; MP Amilbahar S. Mawallil; MP Atty. Rasol Y. Mitmug, Jr., CESE; MP Engr. Don Mustapha A. Loong, JD, CESE; MP Atty. Suharto M. Ambolodto, CSEE, MNSA; and MP Rasul Enderez Ismael

AN ACT

**CREATING THE BANGSAMORO IRRIGATION COORDINATING OFFICE,
DEFINING ITS POWERS AND FUNCTIONS, APPROPRIATING FUNDS
THEREOF, AND FOR OTHER PURPOSES**

Explanatory Note

Section 2, Article V of the Organic Law provides that the Bangsamoro Government shall exercise its authority over matters including agriculture, food security, inland waters, public works, and infrastructure water supply and services, flood control and irrigation systems, among others.

In close collaboration with the National Irrigation Administration (NIA) which takes the lead in the development of irrigation projects and facilities in the country under R.A. 3601, the Bangsamoro Government shall fully harness its irrigation potentials to increase production and productivity of the region's agricultural resources.

The current state of irrigation development in the Bangsamoro Autonomous Region is indicated by these statistics. In 2018, the potential irrigable areas in the Bangsamoro Autonomous Region in Muslim Mindanao (BARMM) were about 160,150 hectares, while the area served was only about 50,096 hectares or the equivalent of a development rate of 31.28 percent of the region's irrigable areas.¹

This implies that the Bangsamoro Autonomous Region still has vast irrigation potentials which, if properly developed, will address food security and rice sufficiency in the region.

¹ *Bangsamoro Development Plan, 2020-2022* p. 293

Presently, the National Irrigation Administration does not have a regional office in BARMM. The autonomous region is presently served by NIA's provincial offices in the provinces. Maguindanao is served by NIA Region XII, through its provincial office in Maguindanao. Lanao del Sur is served by NIA Region X, while the Island provinces of Sulu, Tawi-Tawi, and Basilan are served by the NIA Regional Office IX.

With the establishment of the irrigation coordinating office in the BARMM, the Bangsamoro Government will be able to address the irrigation gaps and it would be able to work directly on irrigation system development in the autonomous region.

In view of the foregoing, the approval of this measure is earnestly sought.



MP ENGR. BANTAN ADIL-AMPATUAN, MNSA

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Parliament

BILLS AND INDEX DIVISION

RECEIVED

Name: ADILAH DAPITUM Signature: [Signature]

Date: 09/19/22 Time: 2:43 PM

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AN ACT

**CREATING THE BANGSAMORO IRRIGATION COORDINATING OFFICE,
DEFINING ITS POWERS AND FUNCTIONS, APPROPRIATING FUNDS
THEREOF, AND FOR OTHER PURPOSES**

Be it enacted by the Parliament of the Bangsamoro Autonomous Region in Muslim Mindanao assembled:

Section 1. Title. – This Act shall be known as the “*Bangsamoro Irrigation Coordinating Act of 2022*”.

Section 2. Declaration of Policy. – It is the declared policy of the Bangsamoro Government to advance agriculture as a key development strategy, promote productivity measures, and provide support for small farmers, land holders and marginal fisherfolks. Irrigation is a major component of agricultural modernization in the Bangsamoro Autonomous Region. The prospective expansion of irrigated lands in the BARMM will contribute significantly to the agricultural progress and economic growth of the autonomous region.

Section 3. Creation of the Bangsamoro Irrigation Coordinating Office. – In the pursuit of the foregoing policies, the Bangsamoro Irrigation Coordinating Office is hereby created to serve as the coordinating agency for the comprehensive development of all types of irrigation, in close cooperation with the National Irrigation Administration, with priority to the national, communal, and individual system of irrigation.

The Bangsamoro Irrigation Coordinating Office shall be an attached agency of the Ministry of Agriculture, Fisheries and Agrarian Reform (MAFAR).

Section 4. Functions and Responsibilities of the Office. – The Bangsamoro Irrigation Coordinating Office shall have the following functions and responsibilities:

1. Coordinate with the National Irrigation Administration to study available and possible water resources in the BARMM for the purpose of utilizing the same for irrigation purposes;
2. Assess and inventory all inland waters such as lakes, rivers, river systems, and streams within BARMM territorial jurisdiction in coordination with the Ministry of Environment and Natural Resources (MENRE) as part of the region's inland water systems for agricultural production purposes;
3. Coordinate with appropriate agencies of the government in the preservation and management of the inland waters within the Bangsamoro Autonomous Region;
4. Participate in the planning and policy formulation for the development, utilization, and maintenance of irrigation systems in the Bangsamoro Autonomous Region;
5. Assess and inventory all existing irrigation systems in the BARMM and their present status and conditions, and make appropriate recommendations for the purpose;
6. Establish and maintain a database management system for irrigation systems in the Bangsamoro Autonomous Region;
7. Represent the Bangsamoro region in all activities pertinent to irrigation development plans and programs;
8. Lead the formulation of a roadmap to further develop the irrigation systems of the Bangsamoro Autonomous Region;
9. Conduct regular monitoring and evaluation of the progress of the implementation of regional irrigation programs and projects, including implementation problems and issues, and recommend solutions for the purpose; and
10. Perform other tasks as directed by the Chief Minister or other competent authority which includes the NIA Administrator.

Section 5. Organizational Structure. – The Office shall be headed by an Executive Director to be assisted by a Deputy Executive Director. The Office shall be composed of the following divisions:

- a) Planning and Policy Division;
- b) Coordination, Monitoring, and Evaluation Division;
- c) Research, Information, and Communication Division;
- d) Finance and Administrative Support Division.

Section 6. Functions and Responsibilities of the Executive Director. – The Executive Director shall have the following functions and responsibilities:

- a) Provide direction and supervision over the full operation of the Bangsamoro Irrigation Coordinating Office;

- b) Provide policy guidelines and standards for the effective and efficient operation and function of the Office in accordance with its mandate and responsibilities;
- c) Ensure that the mandate and functions of the Office and the provisions of this Act are faithfully executed and performed;
- d) Lead the formulation of policy measures as well as development plans and programs for the benefit, protection, and welfare of the beneficiaries of irrigation facilities and infrastructure;
- e) Actively participate in the meetings, conferences, and other functions of the cabinet; and
- f) Establish a recruitment system guided by civil service rules and regulations in the selection of its prospective staff and employees in the career service.

Section 7. Functions and Responsibilities of the Division. – The technical and administrative divisions shall have the following functions and responsibilities:

- a) **Planning and Policy Division.** – The Planning and Policy Division shall have the following functions and responsibilities:
 - 1) Coordinate with the Office for comprehensive policy formulation, planning, and investment programming for irrigation-related infrastructure facilities and utilities;
 - 2) Coordinate the preparation of the socio-economic profile of irrigation project service areas;
 - 3) Review and evaluate area irrigation project proposals and make appropriate actions and recommendations to the appropriate agency;
 - 4) Coordinate with the implementing agencies relative to the Irrigators' Association and farmers' organization issues and concerns in the maintenance and operation of their irrigation systems;
 - 5) Perform such other functions as may be directed by the Executive Director and other competent authority.
- b) **Coordination, Monitoring and Evaluation Division.** – The Coordination, Monitoring and Evaluation Division shall have the following functions and responsibilities:
 - 1) Coordinate comprehensive monitoring and evaluation activities related to planning and implementation of irrigation development projects in cooperation with the appropriate agency of the National and Bangsamoro Government;
 - 2) Monitor and evaluate the progress of privately-owned irrigation project implementation or private systems initiated by individuals or group of farmers;
 - 3) Submit regular monitoring and evaluation reports to higher authorities pertaining to the actual progress of programs and project implementation;
 - 4) Coordinate with the appropriate National and Bangsamoro Government agencies in the proper management and maintenance of

projects related to water supply, drainage control, and irrigation systems;

- 5) Perform other functions as may be directed by the Executive Director and other competent authority.

c) Research, Information and Communication Division. – The Research, Information and Communication Division shall have the following functions and responsibilities:

- 1) Develop and maintain a data and information system that will serve as a repository of processed data and statistical information related to water supply and irrigation systems;
- 2) Coordinate with local researchers based on statistical data, as required for planning and policy formulation and project development related to water services and irrigation and infrastructure-related matters;
- 3) Oversee and conduct studies and research on aspects of regional development concerning agriculture, water resources, flood control, and irrigation development;
- 4) Provide technical assistance and services to local government units in identifying sources of irrigation water, from inland waters like lakes, rivers, and streams for development;
- 5) Perform other functions as may be required by the Executive Director or other competent authority.

d) Finance and Administrative Support Division. – The Finance and Administrative Support Division shall have the following functions and responsibilities:

- 1) Provide support services relating to personnel, staff development, records management, supplies and equipment, budgeting and accounting, collection, and general clerical and utility services; and
- 2) Perform other related functions as may be assigned by the Executive Director and other competent authority.

Section 8. Staffing. – The Bangsamoro Irrigation Coordinating Office shall determine its staffing pattern in accordance with the Government Revised Compensation and Position Classification System.

Section 9. Appropriations. – The funds necessary for the operations and functioning of the Office shall be included in the annual appropriations of the Bangsamoro Autonomous Region.

Section 10. Implementing Rules and Regulations. – Within sixty (60) days from the promulgation of this Act, the necessary rules and regulations for the proper implementation of its provision shall be formulated.

Section 11. Separability Clause. – If for any cause, any part of this Act is declared unconstitutional or contrary to the provisions of Bangsamoro Organic Law, the rest of the provisions shall remain in force and effect.

Section 12. Repealing Clause. - All laws, orders, rules, and regulations which are inconsistent with the provisions of this Act, are hereby repealed, modified, superseded, or amended accordingly.

Section 13. Effectivity. - This Act shall take effect after fifteen (15) days following its full publication in a newspaper of general circulation in the Bangsamoro Autonomous Region in Muslim Mindanao.

Adopted,


MP ENGR. BAIN TAN ADIL-AMPATUAN, MNSA